



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 24, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202202775 (Incident Date: May 2, 2022) regarding Sergeant Mark Kistoo,
Tax No. 943444 (DADS No. 2023-28985)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted in connection with the single allegation that Sergeant Kistoo improperly forcibly removed an individual to the hospital.

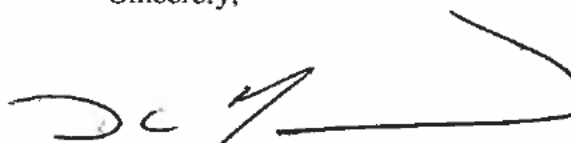
In this matter, Sergeant Kistoo was at the scene of an domestic dispute and was provided with an abundance of information by the police officers who had initially arrived at the scene, as well as by the two parties to the dispute themselves. On the basis of all of the available information, Sergeant Kistoo determined that the individual, who had a psychiatric history and may not have been taking her prescribed medication, may reasonably be a threat to herself, in that she was so agitated and emotional that she was apparently not able to make sound decisions concerning the multiple serious medical conditions and symptoms that she had identified herself as having. The decision to have her evaluated and potentially treated, was a prudent decision, and one based on a clearly well-founded concern for the individual's well-being.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Therefore, based on the foregoing, Sergeant Kistoo will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-13 (Emotionally Disturbed Persons).

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a long horizontal stroke extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office